

13. Present use of restricted property

The family maintains the field as a mowed piece of property.

14. Note any possible violations of the terms of the conservation restriction [be as specific as possible]:

Monitor comments/Intended Follow-up

~~None~~ Noted

Camper on field

owner notified

15. Present use of abutting properties [including the owner's unrestricted lands]:

All abutting properties are residential. This is a pork chop piece in a housing subdivision.

16. Describe any rare or unusual plant or animal life or sign thereof:

There is a certified vernal pool on the property. Finger clams and salamander have been identified there.

17. Additional remarks [particularly as to the present condition of the property]:

Property is in good condition.

18. Names of monitoring team members:

Mary Ellen Iorio; Nick Shrewsbury

19. Time spent on property:

30 minutes

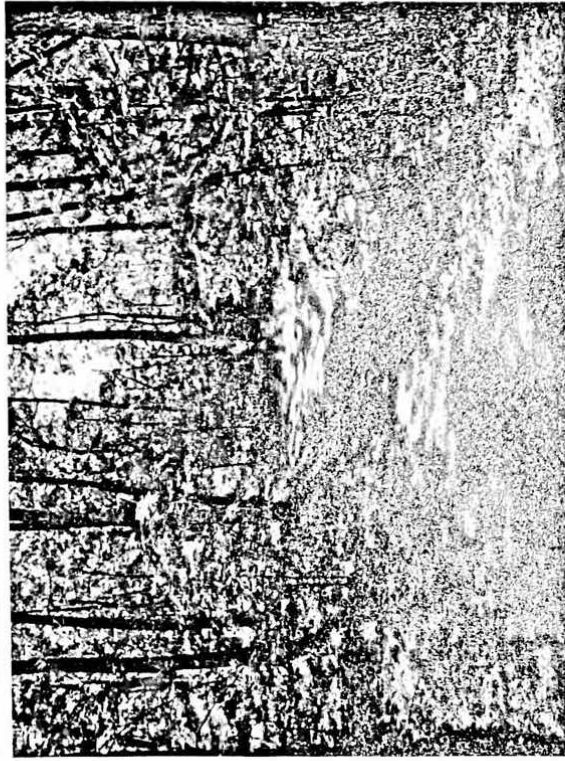
20. Inspection team leader:

Mary Ellen Iorio

[printed name]

Mary Ellen Iorio (via email)

[signature]



1.

Cedar Pond Easement: 19

334497E 4726529N Facing SW



2.

Vernal pool on the property:

19 334570E 4726492N Facing N



3.

Vernal pool on the property: 19 334570E

4726492N Facing N

CEDAR POND SOCIETY

6/11/08

7993

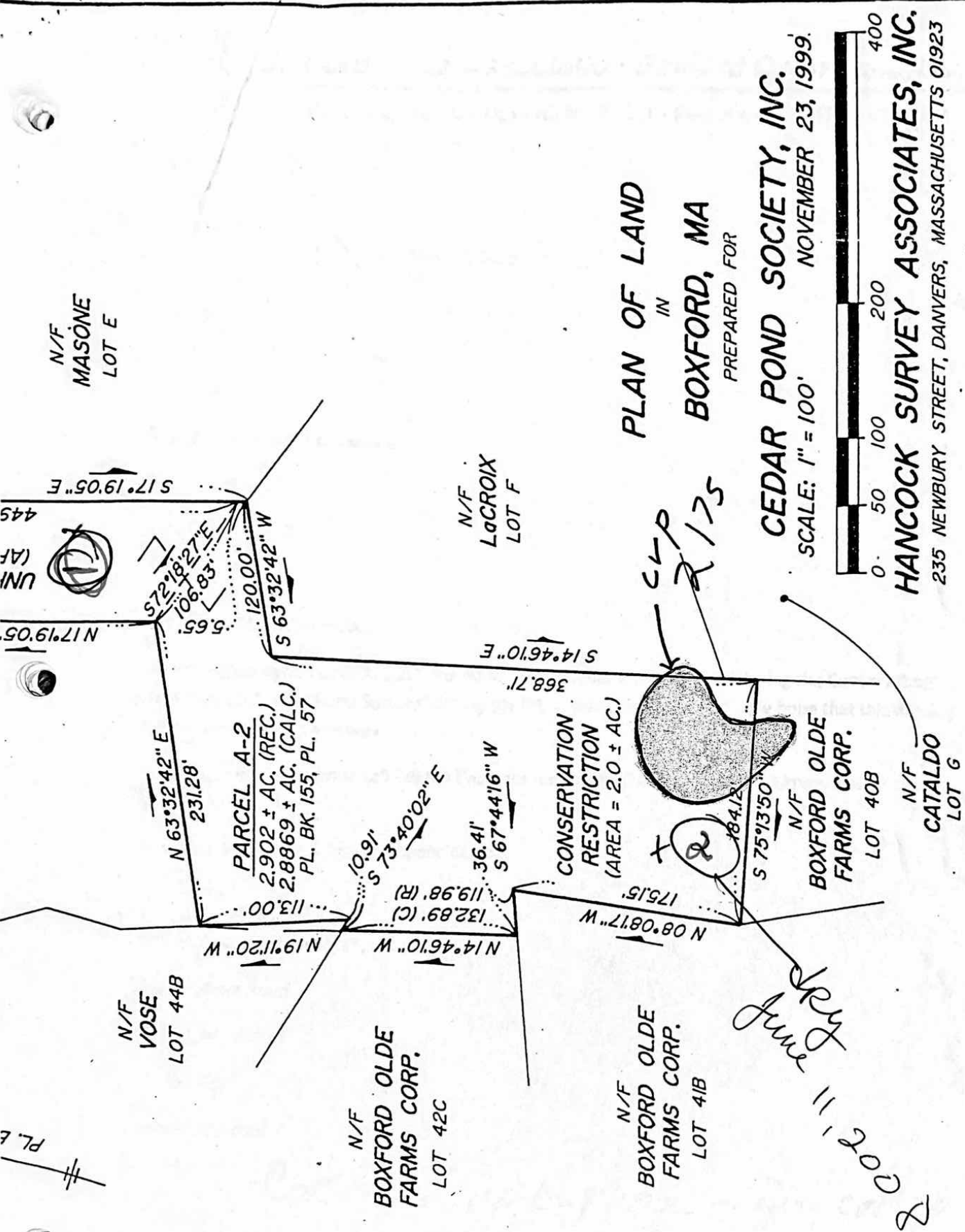


PHOTO CONTEXT / Placement map

CEDAR POND SOCIETY VERNAL POOL
OFF SHEFFIELD ROAD, BOXFORD

**Boxford Trails Association/Boxford Open Land Trust**

Post Office Box 95, Boxford, MA 01921 • Phone and Fax (978) 887-7031

May 23, 2008

Mr. and Mrs. Richard Zaniewski

38 Sheffield Road

Boxford, MA 01921

Dear Mr. and Mrs. Zaniewski,

I am writing on behalf of BTA/BOLT, Inc. to inform you that we will be monitoring the Conservation Restriction on "Cedar Pond Society" during the first 2 weeks in June, 2008. We hope that this doesn't inconvenience you in any way.

I would appreciate a phone call - didn't find your number in the book - to let me know when might be convenient for you.

Thank you and we look forward to seeing you.

Natasha Grigg for BTA/BOLT, Inc

92 Lake Shore Road

Boxford, MA 01921

978-352-632

mymol@aol.com

Followed up by phone - They called

Cedar Pond Society

C.R. Weld by BTA/Bolt

1.



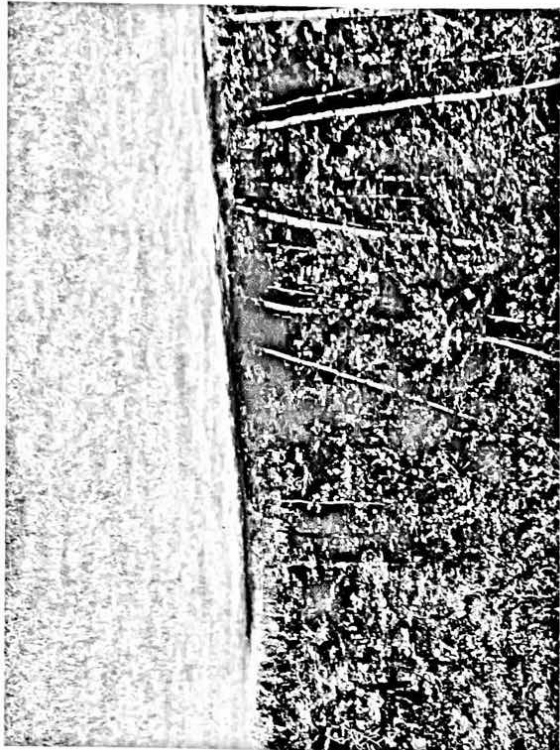
Cedar Pond Entrance: 19
334497E 4726529N Facing SW

2.



Panoramic view of Property: 19
334531E 4726493N Facing W

3.



Panoramic View of Property: 19
3344531E 4726493N Facing SW

4.

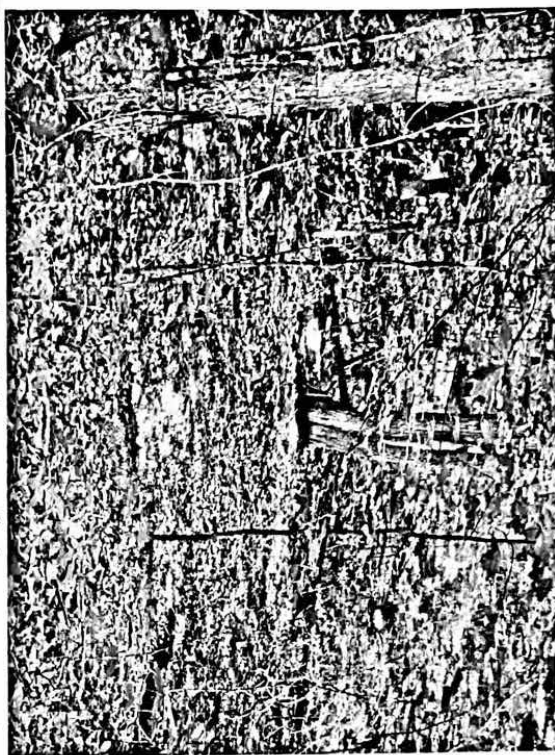


Panoramic View of Property: 19
3344531E 4726493N Facing NW

Summer 2007 monitoring

5.

Vernal pool on the fringe of the property: 19
334570E 4726492N Facing N



Summer 2007
Monitoring



The Commonwealth of Massachusetts

Executive Office of Environmental Affairs

251 Causeway Street, Suite 900

Boston, MA 02114-2112

ARGEO PAUL CELLUCCI

GOVERNOR

JANE SWIFT

LIEUTENANT GOVERNOR

BOB DURAND

Tel. (617) 626-1000

Fax (617) 626-1181

June 30, 2000

JUL 14 2000

Judy Gore, President

BTA/BOLT

Post Office Box 95

Boxford, MA 01921

RE: Cedar Pond Society, Inc.; Boxford CR #19

Dear Ms. Gore:

The subject conservation restriction has been approved and signed by Secretary Bob Durand. It may now be recorded in the registry of deeds.

Kindly notify this office of the date of recording and the book and page number in which the instrument was recorded. Thank you.

Sincerely,

Joel A. Lerner
Director

enc.

cc: Bd. of Selectmen

CONSERVATION RESTRICTION & ACCESS EASEMENT

The undersigned, Cedar Pond Society, Inc., with corporate office at 6 Olde Farms Road, Boxford, Essex County, Massachusetts, established under an Article of Incorporation dated June 11, 1969, and recorded with the Secretary of State, Corporations Division, Commonwealth of Massachusetts, for nominal consideration, hereby grants, with quitclaim covenants, to Boxford Trails Association/Boxford Open Land Trust (BTA/BOLT), a Massachusetts not for profit corporation having its principal office at 7 Elm Street, Boxford, Essex County, Massachusetts 01921, its successors and permitted assigns, in perpetuity and exclusively for conservation purposes, a Conservation Restriction on the land located in Boxford, Essex County,

Massachusetts shown as "Conservation Restriction" on a plan entitled "Plan of Land in Boxford, MA", designed for the Cedar Pond Society, Boxford, Massachusetts, dated November 23, 1999, by Hancock Survey Associates, Inc. and recorded as Plan 344, in Plan Book 89 in the Essex South District Registry of Deeds and incorporate Cedar Pond Society, Inc., and its successors in title as "Grantor" and Boxford Trails Association/Boxford Open Land Trust (BTA/BOLT), and its successors and permitted assigns are hereinafter referred to as the "Grantor". Said Conservation Restriction was created by deed of Boxford Olde Farms Corporation in said deed of Boxford Olde Farms Corporation in said current owner in Book 6960, Page 555.

↑
fill in

misses). Said
fter called the
(LT), and its
ntor's title see
and conveyed to

Whereas, the Premises provides significant scenic, aesthetic, scientific and educational value in its present state as a natural area and open space which has not been subjected to

Whereas, the Grantor and Grantee recognize the uniqueness of the Premises as a distinctive Massachusetts landscape embodying the special character of the region in which the Premises is located and have the common purpose of conserving the natural and open space values of the Premises for this generation and future generations; and

Whereas, the Premises include a wetland and vernal pool in the process of being certified, and protection of such resources are referenced in the 1994 Boxford Open Space and Recreation Plan; and the 1996 Boxford Master Plan; and

Whereas, the Premises contains and consists of forested upland, representing a diversity of wildlife habitat; and

Whereas, the Premises is in close proximity to The Town of Boxford's primary conservation area, known as "Wildcat", which is used by the general public for passive recreational and educational activities; and

Whereas, said Open Space and Recreation Plan identifies Conservation Restrictions as

Therefore, in order to preserve the Premises in perpetuity in its present natural scenic and open condition, the Grantor conveys to the Grantee a perpetual Conservation Restriction within

the meaning of Chapter 184, Section 31 et seq. of the General Laws of Massachusetts, as amended. The terms of this Conservation Restriction are as follows.

1. Prohibited Activities. Except as otherwise herein provided, the Grantor shall neither perform nor permit others to perform any of the following acts or uses on, over or under the Premises:

- (a) Construction or placing of any building, tennis court, landing strip, mobile home, swimming pool, septic system, road, sign, fence, billboard or other advertising display, utilities, conduits, poles, antennas, towers, windmills, solar panels or other temporary or permanent structures or facilities on, under, or above the ground;
- (b) Dumping or placing of soil or other substances on the ground as landfill, or dumping or placing of vehicle bodies or parts, junk, trash, refuse, solid or chemical waste or unsightly or offensive materials, or the installation of underground storage tanks;
- (c) Cutting, removal or destruction of trees, grasses, shrubs or other vegetation;
- (d) Dumping or placing of rock or other mineral substances or natural deposits except as necessary for proper drainage or soil conservation and then only in a manner which does not impair the purpose of this Conservation Restriction;
- (e) Any commercial or industrial use or any institutional use inconsistent with the purposes of this Conservation Restriction;
- (f) Use of motorized vehicles of any nature or kind, including but not limited to cars, trucks, motorcycles, all-terrain vehicles and snowmobiles, except such as may be reasonably required by police, firemen or other governmental agents in carrying out their lawful duties and except for cars, trucks and other vehicles used for purposes permitted by this Conservation Restriction;
- (g) Any activity which impairs the natural and open condition of the premises;
- (h) Activities detrimental to drainage, flood control, water or soil conservation, water quality, or erosion control;
- (i) Any other use of the Premises or activity which would impair the conservation values unless such use or activity is necessary and desirable for the protection of the conservation values that are subject to this

Conservation Restriction.

2. **Reserved Rights.** All acts and uses not prohibited in paragraph 1 are permissible. Notwithstanding the provisions of paragraph 1, the following acts and uses are also permitted, but only if such uses and activities do not materially impair the purposes of this Conservation Restriction and other significant conservation interests:

- (a) Within forested areas, in accordance with generally accepted forest management practices, (i) selective pruning and cutting to prevent control or remove hazards, disease or insect damage, fire, or to maintain trails; and (ii) except for the area within 200 feet of the vernal pool, the cutting of trees for any purpose, including selective commercial timber production, in accordance with a plan, prepared by a professional forester and approved by the Grantee, that is designed to protect the conservation values of the Premises, including without limitation wildlife habitat values;
- (b) Activities designed to enhance the ecological or natural historical value of the Premises or to enhance the awareness of such values, including but not limited to the creation of footpaths, boardwalks and the placing of informative signs and benches as permitted by the Grantor;

and other passive outdoor recreational and educational activities consistent with the purposes of this Conservation Restriction;

- (d) Such other activities requested by the Grantor and expressly approved by the Grantee as are consistent with the purposes of this Conservation Restriction.

The exercise of any right reserved by the Grantor under this paragraph 2 shall be in compliance with the then-current Zoning By-Law applicable to the Premises, the Wetlands Protection Act (General Laws Chapter 131, Section 40), the Rivers Protection Act, the Boxford Wetlands Protection By-Law, and all other applicable federal, state and local law.

The inclusion of any reserved right in this paragraph 2 requiring a permit from a public agency does not imply that the Grantee takes any position on whether such permit should be issued.

3. **Affirmative Covenants of the Grantor.** The Grantor shall pay before delinquency all taxes, assessments, fees and charges levied on or assessed against the Premises by competent authority (collectively "taxes"), and shall furnish the Grantee with satisfactory evidence of

4. **Access by the Grantee.** The Grantee through its duly designated officers, directors, members, employees, representatives or agents shall have the right to enter the Premises

following reasonable notice and at reasonable times and in a reasonable manner for the purpose of inspecting the Premises, performing scientific study, determining compliance with the terms of this Conservation Restriction and preventing, abating, or remedying any violations thereof. The Grantee shall have the right, at its sole expense, to perform any act required to preserve, conserve or promote the natural habitat of wildlife, fish or plants located on the Premises. For the purpose of accessing the Premises to engage in any of the activities described in this paragraph, the Grantee, through its duly designated officers, directors, members, employees, representatives or agents, shall have the right following reasonable notice and at reasonable times and in a reasonable manner, to pass and repass on foot across land shown as "Unrestricted Area" on the plan entitled "Plan of Land in Boxford, dated November 23, 1999 by Hancock Survey Associates, Inc." and recorded on Plan 341, Plan Book 89, in the Essex South District Registry of Deeds, and incorporated herein by reference.

5. Use by Others. The Grantor recognizes that the Premises are presently used by other persons to pass and country ski for purposes of quiet outdoor recreation. Grantor hereby agrees to the continuance of such activities during daylight hours only; (b) that no motor vehicle, camping, hunting, trapping or discharge of firearms

commercial nature be allowed. To the extent permitted by law, the Grantor and Grantee hereby expressly disclaim any duty to maintain the Premises or warn persons who may enter upon the

uses the Premises for injuries to person or property sustained by such person while on the Premises in the absence of willful, wanton, or reckless conduct by the Grantor.

6. Legal Remedies of the Grantee. The rights hereby granted shall include the right to take any and all actions with respect to the Premises as may be necessary or appropriate, with or without order of the court, to remedy, abate or otherwise enforce any violations hereof, as well as the right to enforce this Conservation Restriction by appropriate legal proceedings and to obtain injunctive and other equitable relief against any violations, including without limitation relief requiring restoration of the Premises to its condition at the time of this grant (it being agreed that the Grantee may have no adequate remedy at law), and shall be in addition to, and not in limitation of, any other rights and remedies available to the Grantee. The Grantor and the successors and assigns of the Grantor covenant and agree to reimburse the Grantee for all reasonable costs and expenses (including without limitation reasonable counsel fees) incurred in enforcing this Conservation Restriction or in taking reasonable measures to remedy or abate any violation thereof, provided that a violation of this Conservation Restriction is acknowledged by the Grantor or determined by a court of competent jurisdiction to have occurred. By its acceptance, the Grantee does not undertake any liability or obligation relating to the condition of the Premises. Enforcement of the terms of this Conservation Restriction shall be at the discretion of the Grantee, and any forbearance by the Grantee to exercise its rights under this Conservation Restriction shall not be deemed or construed to be a waiver. If any provision of this Conservation Restriction shall to any extent be held invalid, the remainder shall not be affected.

1
7. Assignment by the Grantee. The benefits of this Conservation Restriction shall be deemed to be in gross and the Grantee and its successors and assigns shall have the right to assign its right, title and interest hereunder to a "Qualified Organization" as defined in Section 170 (h)(3) of the Internal Revenue Code of 1986, as amended, provided that such assignee shall also be an eligible donee of a Conservation Restriction as set forth in Chapter 184, Section 32 of the General Laws of Massachusetts, and provided further that, as a condition of such assignment, the assignee is required to hold this Conservation Restriction and enforce its terms for conservation purposes.

8. Subsequent Transfers. The Grantor agrees to incorporate the terms of this Conservation Restriction by reference in any deed or other legal instrument by which it divests itself of any interest in all or a portion of the Premises, including without limitation, a leasehold interest.

9. Representation of the Grantee. The Grantee represents that it is a not for profit corporation, that it has a perpetual existence, that it is organized and operated for the purpose of preserving and conserving natural resources, natural habitats, environmentally sensitive areas and for other charitable, scientific and educational purposes, that it has both the necessary funds and commitment to hold this Conservation Restriction exclusively for conservation purposes in perpetuity and to enforce its terms, and that it is a "Qualified Organization" as that term is defined in Section 170 (h) (3) of the Internal Revenue Code of 1986, as amended.

10. Required Notifications of Transfers. The Grantor shall notify the Grantee in writing at least thirty (30) days before conveying the Premises, or any part thereof or interest therein (including a lease). The Grantee shall notify the Grantor in writing at least thirty (30) days before it assigns this Conservation Restriction.

11. Notice and Approval With Respect to the Grantor's Activities. Whenever notice to or approval by the Grantee is required under provisions of paragraphs 1 or 2, the Grantor shall notify the Grantee in writing not less than thirty (30) days prior to the date the Grantor intends to undertake the activity in question. The notice shall describe the nature, scope, design, location, timetable and any other material aspect of the proposed activity in sufficient detail to permit the Grantee to make an informed judgment as to its consistency with the purposes of this Conservation Restriction. Where the Grantee's approval is required, the Grantee shall grant or withhold its approval in writing within thirty (30) days of receipt of the Grantor's written request therefor.

12. Proceeds from Extinguishment; Eminent Domain. The Grantor and Grantee agree that the donation of this Conservation Restriction gives rise for purposes of this paragraph to a property right, immediately vested in the Grantee, with a fair market value determined by multiplying the current fair market value of the Premises unencumbered by this Conservation Restriction (minus any increase in value attributable to improvements made after the date of this grant) by the ratio of the value of this Conservation Restriction at the time of this grant to the value of the Premises, without deduction for the value of this Conservation Restriction, at the

time of this grant. Such proportionate value of the Grantee's property right shall remain constant. If any change in conditions ever gives rise to extinguishment or other release of the Conservation Restriction under applicable law, then the Grantee, on a subsequent sale, exchange or involuntary conversion of the Premises, shall be entitled to a portion of the proceeds equal to such proportionate value, subject however, to any applicable law which expressly provides for a different disposition of proceeds. Whenever all or any part of the Premises or any interest therein is taken by public authority under power of eminent domain, or if all or any part of this Conservation Restriction is otherwise extinguished by act of public authority then the Grantor and the Grantee shall cooperate in recovering the full value of all direct and consequential damages resulting from such action. All related expenses incurred by the Grantor and the Grantee shall first be paid out of any recovered proceeds, and the remaining proceeds shall be distributed between the Grantor and the Grantee in shares equal to such proportionate value. The Grantee shall use its share of the proceeds in a manner consistent with the conservation purpose set forth therein.

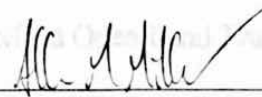
13. Binding Effect; Interpretation. The burdens of this Conservation Restriction shall be deemed to run with the Premises, shall be enforceable in perpetuity against the Grantor, the Grantor's successors in title to the Premises, and any person holding any interest therein, by the Grantee, its successors and assigns and its duly designated officers, directors, members, employees or agents as holders of this Conservation Restriction. This Conservation Restriction shall be in addition to and not in lieu of any other restrictions or easements of record affecting the Premises. The Grantee is authorized to record or file any notices or instruments appropriate to assuring the perpetual enforceability of this Conservation Restriction; and the Grantor on behalf of itself and its successors and assigns appoints the Grantee its attorney-in-fact to execute, acknowledge and deliver any such instruments on its behalf. Without limiting the foregoing, the Grantor and its successors and assigns agree themselves to execute any such instrument upon request.

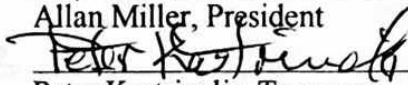
14. Effective Date. The Grantor and the Grantee intend that the restrictions arising hereunder take effect when all the requisite signatures pursuant to Section 32 of Chapter 184 of the General Laws of Massachusetts have been obtained and this document has been recorded in the Registry of Deeds.

15. Termination of Rights and Obligations. Notwithstanding anything to the contrary contained herein, the rights and obligations under this Conservation Restriction of any party holding any interest in the Premises terminate upon transfer of that party's interest, except that liability for acts or omissions occurring prior to transfer, and liability for the transfer itself if the transfer is in violation of this Conservation Restriction, shall survive the transfer.

16. Estoppel Certificates. Upon request by the Grantor, the Grantee shall within thirty (30) days execute and deliver to the Grantor any document requested, including an estoppel certificate, which certifies the Grantors' compliance with any obligation of the Grantor contained in this Conservation Restriction, and which otherwise evidences the status of this Conservation Restriction.

IN WITNESS WHEREOF, the said Allan Miller, President, Cedar Pond Society, and Peter Kastrinelis, Treasurer, Cedar Pond Society, have hereunto set their hand and seal this 13 day of June, 2000.


Allan Miller, President

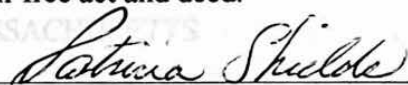

Peter Kastrinelis, Treasurer

COMMONWEALTH OF MASSACHUSETTS

Essex, ss

June 13, 2000

Then personally appeared before me the above-named Allan Miller and Peter Kastrinellis and acknowledged the foregoing instrument to be their free act and deed.


Notary Public

My Commission Expires:

My Commission Expires
October 20, 2006


Notary Public

My Commission Expires: